



CHAPTER cxxiii.

An Act to confirm certain Provisional Orders of the A.D. 1905.
 Local Government Board for Ireland relating to Belfast
 the Belfast Holywood and Castlereagh United District
 Cork (Rural) Downpatrick (Rural) Newtownards and
 North Dublin (Rural). [4th August 1905.]

WHEREAS the Local Government Board for Ireland (herein-
 after referred to as "the Local Government Board") have
 made the Provisional Orders set forth in the schedule hereto under
 the Public Health (Ireland) Acts 1878 to 1896 :

41 & 42 Vict. c. 52.
 42 & 43 Vict. c. 57.
 47 & 48 Vict. c. 77.
 52 & 53 Vict. c. 64.
 53 & 54 Vict. c. 59.
 59 & 60 Vict. c. 54.

And whereas it is requisite that the said Orders should be
 confirmed by Parliament and that the provisions herein contained
 should be enacted with reference to the Newtownards Order 1905 :

Be it therefore enacted by the King's most Excellent Majesty
 by and with the advice and consent of the Lords Spiritual and
 Temporal and Commons in this present Parliament assembled
 and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto Orders
 are hereby confirmed and all the provisions thereof shall have in schedule
 full validity and force. confirmed.

2. The urban district council of Newtownards shall not Restriction
 under the powers of the Newtownards Order 1905 hereby con- of power to
 firmed purchase or acquire any house or houses which on the take houses
 fifteenth day of December last were occupied wholly or partially of working
 by thirty or more persons belonging to the working class as class.
 tenants or lodgers or except with the consent of the Local
 Government Board any house or houses which were not so
 occupied on the said fifteenth day of December but have been
 or shall be subsequently so occupied.

[Ch. cxxiii.] *Local Government Board (Ireland)* [5 EDW. 7.]
Provisional Orders Confirmation (No. 2) Act, 1905.

A.D. 1905.

If the said urban district council acquire or appropriate any house or houses for the purposes of the said Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own families and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Short title.

3. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 2) Act 1905.

SCHEDULE.

A.D. 1905.

COUNTY BOROUGH OF BELFAST.

Belfast.

Provisional Order for altering a Local Act.

WHEREAS the Lord Mayor Aldermen and Burgesses of the City of Belfast acting by the council (in this Order referred to as "the Corporation") are the urban sanitary authority for the urban sanitary district consisting of the county borough of Belfast;

And whereas the Belfast Corporation Act 1902 (in this Order referred to as the Act of 1902) is in force in the district; 2 Edw. 7.
c. cix.

And whereas it is provided by subsection (1) of Section 25 of the Act of 1902 that the Corporation may raise for and in respect of the completion of the city hall and buildings and the fitting and furnishing thereof such sum as the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") may allow not exceeding fifty thousand pounds;

And whereas the Corporation have made an application to the Local Government Board for a Provisional Order altering the above-mentioned provision of the said local Act;

And whereas it appears to the Local Government Board expedient that the said provision should be altered:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 205 of the Public Health (Ireland) Act 1878 and of all other powers enabling us in that behalf do hereby order that from and after the date of the Act confirming this Order the Act of 1902 shall be altered so that the following provisions shall have effect namely:— 41 & 42 Vict.
c. 52.

1. In subsection (1) of Section 25 of the Act of 1902 "ninety thousand pounds" shall be substituted for "fifty thousand pounds" and the improvement and inclosing of the grounds adjacent to and used in connexion with the city hall shall be included in the purposes for which the said sum of ninety thousand pounds may be expended.

2. The costs and expenses of the Corporation and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the Corporation as part of their expenses incurred in the execution of the Public Health (Ireland) Acts 1878 to 1896.

3. This Order may be cited as the Belfast Order 1905.

Given under our seal of office this nineteenth day of April one thousand nine hundred and five.

(L.S.)

H. A. ROBINSON.

[Ch. cxxiii.] *Local Government Board (Ireland)* [5 EDW. 7.]
Provisional Orders Confirmation (No. 2) Act, 1905.

A.D. 1905.

*Belfast
 Holywood and
 Castlereagh.*

**BELFAST HOLYWOOD AND CASTLEREAGH UNITED
 DISTRICT.**

WHEREAS a nuisance injurious to health is caused by the deposit of sewage and seaweed on that part of the foreshore of Belfast Lough specified in this Order which is situate partly within the county borough of Belfast and the urban district of Holywood and the rural district of Castlereagh;

And whereas the said nuisance is partly caused by the discharge of sewage from the county borough of Belfast the urban district of Holywood and the rural district of Castlereagh;

And whereas the Lord Mayor Aldermen and Burgesses of the county borough of Belfast acting by the town council (in this Order referred to as "the Corporation") are the urban sanitary authority for the urban sanitary district consisting of the said county borough and the Holywood urban district council and the Castlereagh rural district council (which Corporation and Councils are in this Order referred to as "the component authorities") are the sanitary authorities for their respective districts;

41 & 42 Vict
 c. 52.

And whereas an application has been made to the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") by the Castlereagh Rural District Council in pursuance of section 12 of the Public Health (Ireland) Act 1878 (in this Order referred to as "the Act") to form a United District and to constitute a Joint Board for the purpose of abating the said nuisance;

And whereas it appears to the Local Government Board that it would be for the advantage of the said sanitary districts that they should be formed into a United District for the purposes and in the manner herein-after provided:

• It is ordered by the Local Government Board as follows:—

Commence-
 ment of Order.

1. This Order shall come into operation on the day of the Act confirming the same (in this Order referred to as "the appointed day").

Constitution of
 United District.

2. The county borough of Belfast the urban district of Holywood and the rural district of Castlereagh (which districts are in this Order referred to as "the component districts") shall be formed into a United District to be called "The Belfast Holywood and Castlereagh United District" in pursuance of section 12 of the Act for the purpose of abating the nuisance from time to time caused by the deposit of seaweed and sewage matter on the foreshore of Belfast Lough between the mouth of the Connswater river in the county borough of Belfast and the north-eastern boundary of the rural district of Castlereagh at Craigdarragh.

Constitution of
 governing
 body.

3. The Joint Board which shall be the governing body of the said united district shall consist of three ex-officio and nine elective members and one member to be nominated by the Local Government Board and shall be called "The Belfast Holywood and Castlereagh Joint Board" (in this Order referred to as "the Joint Board").

[5 EDW. 7.] *Local Government Board (Ireland) [Ch. cxxiii.]*
Provisional Orders Confirmation (No. 2) Act, 1905.

The Lord Mayor of Belfast and the chairman of each of the councils of the other component districts shall be ex-officio members Five elective members shall be elected annually by the Corporation and two elective members shall be elected annually by each of the other component authorities Each elective member shall at the time of his election be a member of the authority electing him.

A D. 1905.

*Belfast
 Holywood and
 Castlereagh.*

4. Such of the provisions of article 12 of the schedule to the Local Government (Application of Enactments) Order 1898 as relate to members of district councils shall with the necessary modifications apply to members of the Joint Board.

Disqualifica-
 tions.

5. The Joint Board constituted as aforesaid shall be a body corporate by the aforesaid name of "The Belfast Holywood and Castlereagh Joint Board" and shall have perpetual succession and a common seal with power to acquire and hold land for the purpose for which the United District is hereby formed and sections 202 203 and 204 of the Act and section 8 of the Public Health (Ireland) Act 1896 shall apply with the substitution of the Joint Board for the Sanitary Authority.

Incorporation
 of joint board.

6. The first election of elective members of the Joint Board shall take place at a meeting of each of the component authorities to be held within three months after the appointed day or within such further time as the Local Government Board may allow The day on which such meeting shall take place shall be fixed by a resolution of the component authority passed at a previous meeting of the said authority Such resolution may be passed without any previous notice but sufficient time must elapse between the passing of such resolution and the time thereby fixed for the election to enable the clerk to the authority to give notice of the election in the manner following Seven days' previous notice in writing of the time fixed for the election shall be given to each member of the component authority by the clerk to such authority.

First election
 of elective
 members.

7. The clerk to each of the component authorities shall notify in writing to the Local Government Board within seven days after such first election has taken place the names address and occupation of each of the persons elected by such authority as a member of the Joint Board.

Notification of
 members
 elected.

8. After the first election of members of the joint board an annual election of elective members of the said board by the component authorities shall take place at the meeting of each of the said authorities which takes place next after the first day of April in each year after such first election.

Annual elec-
 tion.

9. Each elective member of the Joint Board shall continue in office as an elective member until he dies or resigns or becomes disqualified or vacates his seat for absence or until he becomes an ex-officio member of the Joint Board or until the next annual election of members of the Joint Board by the component authority by which he has been elected.

Continuance in
 office of elective
 members.

10. Casual vacancies among the elective members of the Joint Board shall be filled as follows The component authority by which the member causing the vacancy has been elected shall at a meeting to be held within one month after such vacancy has taken place or within such other period as the Local

Filling casual
 vacancies.

[Ch. cxxiii.] *Local Government Board (Ireland)* [5 Edw. 7.]
Provisional Orders Confirmation (No. 2) Act, 1905.

A.D. 1905. Government Board may direct (of which meeting seven days' notice in writing shall be given by the clerk to such authority to each member of such authority) elect a member of their body to fill such vacancy and the clerk to such authority shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill such vacancy.

*Belfast
Holywood and
Castlereagh.*

Meetings of
joint board.

11.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board.

(2) An annual meeting of the Joint Board shall take place in every year on the first Saturday following the day on which the elections of elective members have been completed.

(3) After the said first meeting and after the annual meeting the Joint Board shall meet at least once in every two months on some day to be fixed at the last preceding meeting of the board and if no such day is fixed then on the first Saturday in every second month succeeding the last preceding meeting.

Chairman and
vice-chairman.

12. At the said first meeting and at the annual meeting the members of the Joint Board shall appoint one of their members chairman and another member vice-chairman of the Joint Board and such chairman and vice-chairman shall hold office until the next annual appointment of a chairman and vice-chairman unless he has previously died resigned or ceased to be a member of the Joint Board In the event of the death or resignation of such chairman or vice-chairman or of his ceasing to be a member of the Joint Board the Joint Board at the next meeting after such vacancy has taken place shall appoint another member of the Joint Board to fill the vacancy.

Conduct of
business at
meetings.

13. At all meetings of the Joint Board the chairman or in his absence the vice-chairman shall preside and if at the commencement of any meeting the chairman and vice-chairman are both absent the members of the board present shall elect one of their number to preside at such meeting until the chairman or vice-chairman takes the chair.

Decision of
questions at
meetings.

14. Every question at any meeting of the Joint Board shall be determined by a majority of the votes of the members present and in any case in which there is an equality of votes on any question that question shall be deemed to be lost provided that where there is an equality of votes at the election of chairman or vice-chairman or chairman of a meeting it shall be determined by lot which of the persons receiving an equal number of votes shall be chairman or vice-chairman or chairman of the meeting as the case may be.

Vote of chair-
man.

15. The chairman presiding at any meeting of the Joint Board shall be entitled to give one vote on each question submitted to the Joint Board but he shall not under any circumstances be entitled to any additional or casting vote.

Quorum.

16. No act at any meeting of the Joint Board shall be valid unless three members at least are present and if no greater number of members be present unless all of them concur ther in

[5 EDW. 7.] *Local Government Board (Ireland) [Ch. cxxiii.]*
Provisional Orders Confirmation (No. 2) Act, 1905.

17. The Joint Board shall at their first meeting or at any adjournment thereof and thereafter as occasion may require appoint a clerk and may appoint such other officers and servants as they think requisite. They may pay their clerk and other officers and servants such reasonable remuneration as they deem expedient and any such clerk and other officer and servant shall be removable by the Joint Board at their pleasure.

A.D. 1905.

*Belfast
 Holywood and
 Castlereagh.*

Appointment
 of officers.

18. Until the first meeting of the Joint Board nothing in this Order shall take away abridge or prejudicially affect any power vested in any of the component authorities with regard to the abatement of the nuisance described in this Order.

Saving of
 powers of
 component
 authorities.

19. The United District is formed for the purpose of abating the nuisance caused by the deposit of seaweed and sewage matter on that part of the foreshore of Belfast Lough hereinbefore specified by and from time to time as occasion may require removing such deposits and causing them to be disposed of in such a manner as to prevent them causing any nuisance. It shall be the duty of the Joint Board to cause the said nuisance to be abated and for this purpose the Joint Board shall be empowered to do such acts and enter into such contracts as may appear to the Joint Board to be required for the purpose aforesaid. All contracts entered into by the Joint Board shall be in accordance with the regulations contained in section 201 of the Act and the provisions contained in the said section shall apply to all contracts made by the Joint Board.

Purpose of
 formation of
 United District.

20. The expenses incurred by the Joint Board in pursuance of this Order shall be defrayed as follows:—

Expenses of
 Joint Board.

The Corporation shall contribute eighty-five per cent. of those expenses and the councils of the other component authorities shall each contribute seven-and-one-half per cent of those expenses:

Provided that the total amount to be expended in any one year by the Joint Board shall not exceed the sum of two thousand pounds:

Provided also that the Local Government Board may at any time after the expiration of five years from the appointed day on the application of any component authority by order to be published as the Local Government Board may direct vary to such extent as may appear to the Board equitable the amounts to be respectively contributed by the component authorities under this Article.

21. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of any component authority or by any officer of any component authority authorised by them for that purpose.

Inspection of
 accounts.

22. The provisions of the Local Government (Ireland) Act 1871 with respect to the audit of accounts as amended and applied to the accounts of public bodies by any subsequent enactment and the orders of the Local Government Board made thereunder shall apply to the accounts of the Joint Board and the audit thereof.

Audit.
 34 & 35 Vict.
 c. 109.

[Ch. cxxiii.] *Local Government Board (Ireland)* [5 EDW. 7.]
Provisional Orders Confirmation (No. 2) Act, 1905.

A.D. 1905.

*Belfast
 Holywood and
 Castlereagh.
 Cost of Order
 inquiries &c.*

23.—(1) All the costs and expenses of the Local Government Board of and incidental to the application for preparation making and confirmation of this Order shall be paid and contributed by the component authorities in the manner provided by Article 20.

(2) The salary of any inspector or officer of the Local Government Board engaged in any inquiry instituted for the purposes of this Order not exceeding three guineas a day and all other costs and expenses incurred by the Board in connexion with any such inquiry shall be paid by such of the component authorities and in such proportions as the Board may direct and the Board may certify the amount of the costs incurred and any sum so certified and directed by the Board to be paid by any component authority shall be a debt due to the Crown from that authority.

*As to payments
 by component
 authorities.*

24. Any sum payable by a component authority in pursuance of this Order shall be paid as part of the expenses incurred by them in the execution of the Public Health (Ireland) Acts 1878 to 1896 and in the case of the rural district council of Castlereagh any such sum shall be supplied by the county council of Down in the manner provided by the Local Government (Ireland) Act 1898.

*61 & 62 Vict.
 c. 37.*

*Power to adapt
 Order in case of
 future altera-
 tions.*

25. If at any time any new district is formed including the whole or any part of any of the component districts or the boundaries of any of the component districts are otherwise altered or the whole or any one of the component districts is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or any of the component districts or authorities in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they may direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

*Settlement of
 differences.*

26. If at any time any difference arises between the Joint Board on the one hand and any component authority on the other hand or between the component authorities respecting any matter arising out of the provisions of this Order the same shall be referred to and be decided by the Local Government Board whose decision shall be final.

*Saving rights
 of Crown in
 foreshore.*

27. Nothing contained in this Order shall extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exercisable by the Crown.

Short title.

28. This Order may be cited as the Belfast Holywood and Castlereagh Joint Board Order 1905.

Given under our seal of office this nineteenth day of April one
 thousand nine hundred and five.

(L.S.)

H. A. ROBINSON.

RURAL DISTRICT OF CORK.

A.D. 1905.

Provisional Order to enable the Council of the Rural District of Cork to put in force the Compulsory Clauses of the Lands Clauses Acts.

Cork.

WHEREAS the council of the rural district of Cork (in this Order referred to as "the district council") being the burial board of the district require to purchase and take the lands described in the schedule hereto for the purpose of enlarging the Garrycloyne burial ground in their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

41 & 42 Vict.
c. 52.

1. The district council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purposes aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

59 & 60 Vict.
c. 54.

2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Cork in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

61 & 62 Vict.
c. 37.

3. This Order may be cited as the Garrycloyne Burial Ground Order 1905.

SCHEDULE.

Rural District of CORK in the County of CORK.

No. on deposited Plan.	Description of Land.	Owners or reputed Owners.	Lessee or reputed Lessee.	Occupier.
1	Part of the townland of Knocknalyre containing 2r.	Mrs. Meredith Johnston Miss Elizabeth Cooke and Denham Franklin Representative of Francis Hodder.	Col. R. F. Williamson C.B.	Mrs. Margaret Meany.

Given under our seal of office this fourteenth day of April one thousand nine hundred and five.

(L.S.)

T. J. STAFFORD.

[Ch. cxxiii.] *Local Government Board (Ireland)* [5 EDW. 7.]
Provisional Orders Confirmation (No. 2) Act, 1905.

A.D. 1905.

RURAL DISTRICT OF DOWNPATRICK.

Downpatrick. Provisional Order to enable the Council of the Rural District of Downpatrick to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the council of the rural district of Downpatrick (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing the town of Castlewellan in their district with a supply of water :

41 & 42 Vict.
c. 52.

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

59 & 60 Vict.
c. 54.

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. Any arbitrator appointed for the purposes of this Order may on the application of the district council award the provision of special or preferential supplies of water in lieu of or in addition to any other compensation.

3. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedule hereto.

61 & 62 Vict.
c. 37.

4. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Down in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

5. This Order may be cited as the Castlewellan Waterworks Order 1905.

[5 EDW. 7.] *Local Government Board (Ireland) [Ch. cxxiii.]*
Provisional Orders Confirmation (No. 2) Act, 1905.

SCHEDULE.

A.D. 1905.

Downpatrick.

Rural District of DOWNPATRIOK in the County of DOWN.

Nos. on deposited Plan.	Description of Lands.	Owner or reputed Owner.	Occupiers.
Townland of CLARKILL.			
1	Field and stream containing 1a. 30p.	The Earl of Annesley	Samuel Shaw.
2	Field containing 3r. 16p.	Ditto	Ditto.
3	Field and stream containing 3r. 10p.	Ditto	James McAuley.
4	Field containing 19p.	Ditto	Ditto.

Given under our seal of office this seventeenth day of April one thousand nine hundred and five.

(L.S.)

H. A. ROBINSON.

URBAN DISTRICT OF NEWTOWNARDS.

Provisional Order to enable the Council of the Urban District of Newtownards to put in force the Compulsory Clauses of the Lands Clauses Acts. *Newtownards.*

WHEREAS the urban district council of Newtownards (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing a supply of water for their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with reference to the purchase and taking of lands otherwise than by agreement or any of them.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedule hereto.

[Ch. cxxiii.] *Local Government Board (Ireland)* [5 EDW. 7.]
Provisional Orders Confirmation (No. 2) Act, 1905.

- A.D. 1905. 3. The costs and expenses of the district council and the Local Govern-
Newtownards. ment Board for Ireland incurred in respect of the application for preparation
making and confirmation of this Order shall be paid by the district council
out of the rate applicable by that council to defray the expenses incurred by
them in the execution of the Public Health (Ireland) Acts 1878 to 1896.
4. This Order may be cited as the Newtownards Order 1905.

S C H E D U L E.

Urban District of NEWTOWNARDS in the County of DOWN.

Nos. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
Townland of BALLYALTON.				
1	Disused quarry con- taining 2a. 3p.	Robert Ferguson - - - -		Robert Ferguson.
2	House (included in area of No. 1).	Ditto - - - -		Ditto.
3	Disused quarry con- taining 2a. 2r. 36p.	Charles McMaster - - - -		Charles McMaster.
4	Field containing 1a. 1p.	Ditto - - - -		Ditto.
5	Entrance to field (in- cluded in area of No. 3).	Ditto - - - -		Ditto.
Townland of BALLYCULLEN.				
1	Field containing 2a. 3r. 19p.	John McCullough - - - -		John McCullough.
2	Field containing 2a. 1r. 24p.	John Boyd - - - -		John Boyd.
3	Stream - - -	Marquis of London- derry.	James McCullough	—
4	Tank containing 2p. -	John Boyd and the Guardians of the Poor Newtownards Union.	- - -	The Guardians of the Poor Newtownards Union.
5	Occupation road 19p.	James McMurray John Boyd John McCullough Andrew Mawhinney.	- - -	James McMurray John Boyd John McCullough Andrew Mawhinney.
6	Disused quarry con- taining 3a. 1r. 1p.	Marquis of London- derry.	- - -	William McDonald.
7	Disused quarry con- taining 2a. 3r. 24p.	Ditto - - -	- - -	Ditto.
8	Same containing 2a. 2r. 8p.	Ditto - - -	- - -	Ditto.

[5 EDW. 7.] *Local Government Board (Ireland) [Ch. cxxiii.]*
Provisional Orders Confirmation (No. 2) Act, 1905.

Nos. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	A.D. 1905. Newtownards.
9	Inspection chamber containing 2p.	Nathaniel Ferguson and the Guardians of the Poor Newtownards Union.	- - -	The Guardians of the Poor of the Newtownards Union.	
10	Occupation road containing 19p.	Nathaniel Ferguson.	- - -	Nathaniel Ferguson and William McDonald.	
Townland of CORPORATION NORTH.					
1	Field containing 17p.	Marquis of Londonderry.	- - -	Samuel C. Kelly.	
2	Field containing 1r. 2p.	Ditto - - -	- - -	Ditto.	
3	Windmill stump (area included in No. 2).	Ditto - - -	- - -	Ditto.	
4	Unoccupied building ground containing 21p.	Ditto - - -	William Hopes -	William Hopes.	

Given under our seal of office this seventeenth day of April one thousand nine hundred and five.

(L.S.)

H. A. ROBINSON.

RURAL DISTRICT OF NORTH DUBLIN.

Provisional Order to enable the Council of the Rural District of North Dublin to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the council of the rural district of North Dublin (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing a system of sewerage for the town of Howth and other portions of the electoral division of Howth in their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

41 & 42 Vict.
c. 52.

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8

[Ch. cxxiii.] *Local Government Board (Ireland)* [5 EDW. 7.]
Provisional Orders Confirmation (No. 2) Act, 1905.

A.D. 1905. of the Public Health (Ireland) Act 1896 with respect to the purchase and
North Dublin. taking of lands otherwise than by agreement or any of them.

59 & 60 Vict.
c. 54.

2. The district council shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the district council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Article the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the district council and the amount of such costs and charges shall be a debt due from the district council to the Crown and shall be recoverable as a Crown debt or summarily.

3. Nothing herein contained shall authorise the district council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Board of Trade without the consent in writing of the Board of Trade on behalf of His Majesty first had and obtained for that purpose (which consent such Board are hereby authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

61 & 62 Vict.
c. 37.

4. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Dublin in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

5. This Order may be cited as the Howth Sewerage Order 1905.

[5 EDW. 7.] *Local Government Board (Ireland)* [Ch. cxxiii.]
Provisional Orders Confirmation (No. 2) Act, 1905.

SCHEDULE.

A.D. 1905.
North Dublin.

Rural District of NORTH DUBLIN in the County of DUBLIN.

Nos. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Occupiers.
Part of the Townland of HOWTH DEMESNE.			
5	Land containing 1r. 36p. -	The Earl of Howth -	The Earl of Howth.
6	Land containing 3p. -	The Great Northern Railway Company of Ireland.	The Great Northern Railway Company of Ireland.
7	Land covered with water at high tide containing 29p.	Ditto and the Board of Trade.	Ditto and the Board of Trade.
8	Ditto containing 1a. 14p. -	The Earl of Howth and the Board of Trade.	The Earl of Howth and the Board of Trade.

Given under our seal of office this seventeenth day of April one thousand nine hundred and five.

(L.S.)

H. A. ROBINSON.

Printed by EYRE and SPOTTISWOODE,
FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.